



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

February 17, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 14188
(TWELFTH REVISION)

EXPIRATION DATE: 2027-01-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Energizer Auto Manufacturing, Inc.
Danbury, CT
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the manufacture, mark, sale and use of a non-refillable, non-DOT specification inside metal container conforming to all regulations applicable to a DOT specification 2Q, except as specified herein, for the transportation in commerce of the hazardous materials authorized by this special permit. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. In accordance with 49 CFR 107.107(a) party status may not be granted to a manufacturing permit. These packagings may be used in accordance with 49 CFR 173.22a.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.304(d) in that the prescribed packaging is not authorized, except as specified herein, and § 173.306(i) in that inner metal receptacles up to 1 liter capacity may be transported as limited quantity, as provided herein.

5. BASIS: This special permit is based on the application of Energizer Auto Manufacturing, Inc. dated January 20, 2023, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
1,1,1,2 Tetrafluoroethane or Refrigerant gas R 134a	2.2	UN3159	N/A

7. SAFETY CONTROL MEASURES:

- a. PACKAGING: Prescribed packaging is a non-refillable, non-DOT specification inside metal container conforming to Interdynamics Incorporated drawing numbers ID-LC-001 and ID-LC-001.1b on file with the Office of Hazardous Materials Safety (OHMS) and DOT Specification 2Q (§ 178.33a), except as follows:

§ 178.33a-2 *Type and size.*

(a) * * *

- (b) The capacity of the containers manufactured under this special permit may not exceed 1 liter (61.0 cubic inches; 33.8 fluid ounces). The maximum diameter may not exceed 3.0 inches.

§ 178.33a-7 *Wall thickness.*

- (a) The minimum wall thickness for containers manufactured under this special permit must be 0.019 inch for aluminum containers and 0.011 inch for steel containers.

§ 178.33a-8 *Tests.*

- (a) One out of each lot of 25,000 containers or less, successively produced per day, shall be pressure tested to destruction and must not burst below 380 psig. The container tested shall be complete with end assembled.

(b) * * *

§ 178.33a-9 *Marking.*

(a) * * *

(1) Containers must be marked "DOT-SP 14188" in lieu of "DOT 2Q".

(2) * * *

b. TESTING: Prior to shipment, each completed container must be heated until the pressure in the container is equivalent to the equilibrium pressure of the lading at 130 °F. Lading equilibrium pressure may not exceed 205 psig at 130 °F. Acceptable containers must show no evidence of leakage, distortion or other defect.

c. OPERATIONAL CONTROLS: Each packaging must be prepared and shipped in accordance with the following:

(1) The liquid content of the lading may not completely fill the container at 130 °F.

(2) The container must be packed in a strong outside packaging as prescribed in § 173.301(a)(9).

(3) Containers authorized under this special permit may be transported as limited quantities in accordance with § 173.306(i). The outside packagings are not required to be marked "INSIDE CONTAINERS COMPLY WITH DOT-SP 14188".

d. MARKING: For containers that are transported by aircraft, each outside packaging must be marked "INSIDE CONTAINERS COMPLY WITH DOT-SP 14188".

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modification or change is made to the package and it is offered for transportation in conformance with this special permit and the HMR.

- c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
 - d. Each packaging manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Safety for a specific manufacturing facility.
 - e. A current copy of this special permit must be maintained at each facility where the package is manufactured under this special permit. It must be made available to a DOT representative upon request.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, and cargo only aircraft.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft and cargo vessel used to transport packages covered by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) — “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005),

amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. **REPORTING REQUIREMENTS:** Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: ae